

GAZETTE OF INDIA
EXTRAORDINARY
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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 11th January, 2016

**SECURITIES CONTRACTS (REGULATION) (STOCK EXCHANGES AND
CLEARING CORPORATIONS) (AMENDMENT) REGULATIONS, 2016**

No.SEBI/LAD-NRO/GN/2015-16/29.-In exercise of the powers conferred by section 31 of the Securities Contracts (Regulation) Act, 1956 read with sections 11 and 30 of the Securities and Exchange Board of India Act, 1992, the Securities and Exchange Board of India hereby makes the following regulations to further amend the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012, namely:—

1. These regulations may be called the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2016.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012, in Regulation 2, in sub-regulation (1), in clause (b) –
 - i. in sub clause (ii)–
 - (1) after the words “who holds” and before the words “fifteen per cent.”, the words “more than” shall be inserted.
 - (2) the words “or more” shall be omitted.

- ii. sub clause (iii) shall be omitted.
- iii. in sub clause (iv) the words “or a company under the same management as of the first person” shall be omitted.
- iv. after sub clause (vi) the following sub clause shall be inserted, namely,- “(vii) such other cases where the Board is of the view that a person shall be considered as an associate based on the facts and factors including the extent of control, independence, conflict of interest;”

U. K. SINHA
CHAIRMAN
SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The SC(R)(Stock Exchanges and Clearing Corporations) Regulations, 2012 were published in the Gazette of India on 20th June, 2012 vide F. No. LAD-NRO/GN/2012-13/07/13546.
2. The SC(R) (Stock Exchanges and Clearing Corporations) Regulations, 2012 were subsequently amended –
 - (a) on 2nd September, 2013 by the SC(R)(Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2013 vide No. LAD-NRO/GN/2013/14/21/6463.
 - (b) on 8th September, 2015 by the SC(R)(Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2015 vide No. LAD-NRO/GN/2015-16/016.